Instructions for Record of Abandonment of Lawful Permanent Resident Status

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-407
OMB No. 1615-0130
Expires 09/30/2027

What Is the Purpose of Form I-407?

Form I-407, Record of Abandonment of Lawful Permanent Resident Status, is designed to provide a simple procedure to record an individual's abandonment of status as a lawful permanent resident (LPR) of the United States. Use of Form I-407 also ensures that the individual abandoning LPR status is informed of the right to a hearing before an immigration judge and that the individual has knowingly, willingly, and affirmatively waived that right.

Who May File Form I-407?

Form I-407 is used by lawful permanent residents who are outside the United States or at a port of entry who want to abandon their LPR status. Form I-407 may also be used by individuals who were admitted into the United States as nonimmigrants or paroled into the United States after abandoning a prior LPR status, and who now want to record that prior abandonment of LPR status. Generally, if a parent abandons LPR status, any minor children in that parent's custody will also have abandoned their LPR status. If a parent, custodial parent, or legal guardian chooses to file a separate Form I-407 on behalf of a minor child, the parent, custodial parent, or legal guardian must submit evidence to establish the parental relationship to the minor child, custody of the minor child, or guardianship of the minor.

Form I-407 is also used by U.S. Department of Homeland Security (DHS) officials and U.S. Department of State (DOS) consular officers to record the facts relating to individuals who abandon LPR status during an in-person interview or by correspondence.

General Instructions

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at **www.uscis.gov/forms**, for specific information about the fees applicable to this form.

How to Complete Form I-407

1. Type or print legibly in black ink.

2. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question that requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.

3. Provide your Alien Registration Number (A-Number) on the top right corner of each page. Your A-Number is located on your Permanent Resident Card (formerly known as the Alien Registration Card). The A-Number on your card consists of a seven- to nine- digit number, depending on when your record was created. If the A-Number on your card has fewer than nine digits, place enough zeros before the first number to make a total of nine digits on Form I-407. For example, type or print number A1234567 as A001234567 or type or print number A12345678 as A012345678.

4. Your form must be properly completed, signed, and submitted. You must include **all** pages when you submit Form I-407.

Specific Instructions

Part 1. Information About You

Item Number 1. Alien Registration Number (A-Number). Enter your Alien Registration Number (A-Number).

Item Number 2. USCIS Online Account Number (if any)**.** Providing your unique USCIS Online Account Number (OAN) helps them manage their online account. You have an Online Account Number if you previously filed an application, petition, or request online or by mail and received a receipt number that begins with IOE. If you filed a form online, you can find your OAN in your USCIS Online Account profile. If you mailed your form, we still created an OAN for you. You can find the number at the top of the USCIS Account Access Notice we sent you. The OAN is not the same as an A-Number. If you do not have a receipt number beginning with IOE, you do not have an OAN.

Item Number 3. Your Name Exactly As It Appears on Your Permanent Resident Card (if applicable). Type or print your name exactly as it appears on your Permanent Resident Card even if it is misspelled or has changed through marriage, divorce, or other court order since you received your card. Type or print "N/A" if you do not have a Permanent Resident Card.

Item Number 4. Your Current Legal Name. Enter your current legal name.

Item Number 5. Date of Birth. Enter your date of birth in month/day/year formatted as mm/dd/yyyy.

Item Numbers 7. - 8. Country of Birth and Country of Citizenship or Nationality. Enter your country of birth and country of citizenship or nationality. The name of the country should be its current official name.

Item Number 8. Date of Last Departure from the United States. Enter the date of last departure from the United States (if known).

Item Number 9. Mailing Address Outside of the United States. Enter your mailing address outside of the United States.

Item Number 10. Email Address (if any)**.** Provide an email address where you can be reached.

NOTE: If you do not provide an email address and we need to contact you, processing of your form may be delayed.

Item Numbers 11. - 18. Documents Returned and Location of Submission. Select the corresponding boxes for all documents you surrendered, list other documents surrendered, and select the corresponding boxes for location of submission. Submit all Permanent Resident Cards, reentry permits, and/or refugee travel documents in your possession. For **Item Number 12.**, if you did not surrender your Permanent Resident Card, select one of the corresponding boxes explaining why you did not return the card. In addition, select and complete the certification statement in **Item Number 13.**

Item Numbers 19. - 20. Certification. You must sign Form I-407 before DHS or DOS accepts it.

If you are 14 years of age or younger, then your parent, custodial parent, or duly appointed legal guardian must sign and consent to the submission of your Form I-407. Your parent must submit evidence to establish the parental relationship to you, such as a birth certificate or a custodial parental agreement. Your legal guardian must submit letters of guardianship or other orders issued by a government agency or court authorized to make such appointments under the law governing the place where you reside.

If you are an incapacitated adult, then your duly appointed legal guardian must sign and consent to the submission of Form I-407. The legal guardian must submit an official letter of guardianship or other orders issued by a government agency or court authorized to make such appointments under the law governing the place of your residence.

By signing the Form I-407, your parent, custodial parent, or legal guardian is consenting to Form I-407 being submitted for you.

You should carefully read the following section of the instructions regarding the rights of lawful permanent residents. If you submit Form I-407 in person, then before asking you to sign Form I-407, the DHS official or the DOS consular officer will explain that:

By signing Form I-407, you waive the right to a hearing before an immigration judge who would decide whether you abandoned your LPR status. If you choose a hearing before an immigration judge instead, you would have the right:

1. To be represented by an attorney or accredited representative as long as it is at no expense to the U.S. Government;
2. To challenge any evidence that DHS may present against you;
3. To present evidence in your favor;
4. To require that DHS prove by clear, unequivocal, and convincing evidence that you have abandoned your lawful permanent resident status; and
5. To appeal a decision against you.

Part 4. For Government Use Only

If the individual is interviewed, the interviewing U.S. government official must select **Item Number 1.** and complete **Item Numbers 3. - 4.** on the form.

If the individual is not interviewed, the U.S. government official must select **Item Number 2.** and complete **Item Numbers 3. - 4.** on the form.

Where To File?

Please see our website at **www.uscis.gov/I-407** for the most current information about where to file this form.

DHS Privacy Notice

AUTHORITIES: The information requested on this form, and the associated evidence, is collected under the Immigration and Nationality Act section 103(a)(3).

PURPOSE: The primary purpose for providing the requested information on this form is to provide a means for individuals to provide a record of abandonment of lawful permanent resident status.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, and any requested evidence, may delay or prevent USCIS from processing your request to abandon your status.

ROUTINE USES: DHS may share the information you provide on this form with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS-001 - Alien File, Index, and National File Tracking System and the DHS/USCIS-007 - Benefits Information System] which you can find at **www.dhs.gov/privacy**. DHS may also share the information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

An agency may not conduct or sponsor an information collection, and a person is not required to respond to a collection of information unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 15 minutes per response, including the time for reviewing instructions, gathering the required documentation and information, completing the form, preparing statements, attaching necessary documentation, and submitting the form. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0130. **Do not mail your completed Form I-407 to this address.**